

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sarah Milardo	Team: Team # 2	CCRB Case #: 201301444	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 02/09/2013 1:30 PM	Location of Incident: § 87(2)(b) 83rd Precinct Stationhouse		18 Mo. SOL 8/9/2014		Precinct: 83
Date/Time CV Reported Mon, 03/18/2013 8:37 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/18/2013 8:37 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. Officers			
3. POF Jeanette Giglio	11604	949026	083 PCT
4. SGT Darryl Smallwood	04959	939482	083 PCT
5. POM Steven Malone	14569	944762	083 PCT
6. POM Erick Erdaide	08391	947910	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Nikia Diggs	10997	932550	083 PCT
2. SSA Gerard Nicholson	01027	905371	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Steven Malone	Force: PO Steven Malone used pepper spray against § 87(2)(b) at § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Steven Malone	Discourtesy: PO Steven Malone spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.	C . Exonerated
D . POM Erick Erdaide	Abuse: PO Erick Erdaide threatened § 87(2)(b) with the use of force at § 87(2)(b) in Brooklyn.	D . Unsubstantiated
E . POM Erick Erdaide	Discourtesy: PO Erick Erdaide spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.	E . Unsubstantiated
F . POM Erick Erdaide	Force: PO Erick Erdaide used a chokehold against § 87(2)(b) at § 87(2)(b) in Brooklyn.	F . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
G . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.	G . Officer(s) Unidentified
H . SGT Darryl Smallwood	Force: Sgt. Darryl Smallwood used physical force against § 87(2)(b) at § 87(2)(b) in Brooklyn.	H . Unfounded
I . POF Jeanette Giglio	Abuse: PO Jeanette Giglio did not obtain medical treatment for § 87(2)(b) at the 83rd Precinct Stationhouse.	I . Unsubstantiated
J . An officer	Abuse: An officer did not obtain medical treatment for § 87(2)(b) at the 83rd Precinct Stationhouse.	J . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed a complaint through the CCRB Call Processing System on March 18, 2013. On February 9, 2013, at approximately 1:30 p.m., one of § 87(2)(b)'s tenants, § 87(2)(b) contacted 911 and police responded to § 87(2)(b) in Brooklyn. § 87(2)(b) and his three adult children, § 87(2)(b) and § 87(2)(b) were arrested and the following allegations resulted:

Allegation A – Force: Officers used physical force against § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation B – Force: PO Steven Malone used pepper spray against § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation C – Discourtesy: PO Steven Malone spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.

§ 87(2)(g)

As such, it is recommended that **Allegations A, B, and C** be closed as **exonerated**.

Allegation D – Abuse of Authority: PO Erick Erdaide threatened § 87(2)(b) with the use of force at § 87(2)(b) in Brooklyn.

Allegation E – Discourtesy: PO Erick Erdaide spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation F – Force: PO Erick Erdaide used a chokehold against § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation I – Abuse of Authority: PO Jeanette Giglio did not obtain medical treatment for § 87(2)(b) at the 83rd Precinct Stationhouse.

§ 87(2)(g)

As such, it is recommended that **Allegations D, E, F, and I** be closed as **unsubstantiated**.

Allegation G – Discourtesy: An officer spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation J – Abuse of Authority: An officer did not obtain medical treatment for § 87(2)(b) at the 83rd Precinct Stationhouse.

§ 87(2)(g)

As such, it is recommended that **Allegations G and J** be closed as **officer unidentified**.

Allegation H – Force: Sgt. Darryl Smallwood used physical force against § 87(2)(b) at § 87(2)(b) in Brooklyn.

§ 87(2)(g)

As such, it is recommended that **Allegation H** be closed as **unfounded**.

§ 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a black man with black hair and brown eyes, § 87(2)(b)
§ 87(2)(b) He was § 87(2)(b) at the time of the incident. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Arrest Photo (encl. C15)

§ 87(2)(b) s arrest photo revealed no apparent injuries and that both of his eyes were squinted.

Statements to Medical Personnel (encl. Privileged Documents)

§ 87(2)(b) was triaged at § 87(2)(b) at § 87(2)(b) on § 87(2)(b). He complained of pain to the left side and top of his head and left side of his chest after being assaulted by multiple people. § 87(2)(b) stated that he was punched and kicked in his head and chest § 87(2)(b)

CCRB Statement (encl. C7-C9)

§ 87(2)(b) was interviewed at the CCRB on March 27, 2013.

On February 9, 2013, at approximately 1:30 p.m., § 87(2)(b) and his four adult children § 87(2)(b) § 87(2)(b) and § 87(2)(b) and a § 87(2)(b) son were in their apartment at § 87(2)(b) § 87(2)(b) in Brooklyn. § 87(2)(b) s wife, § 87(2)(b) § 87(2)(b) was the legal owner of the building which housed five apartments. § 87(2)(b) heard a knock on the front door and opened it to see two officers, PO1 who he described as a 29 to 35-year-old white man standing 5'9" to 5'11" and weighing 160 pounds and PO2 who he described as a 30 to 35 year old white or Hispanic woman standing 5'6" to 5'7" tall with a medium build. PO1 and PO2 were identified via investigation as PO Stephen Malone and PO Jeanette Giglio respectively. They were standing with a tenant from the second floor, § 87(2)(b)

PO Malone asked if § 87(2)(b) was the owner of the building. He said that his wife was, but that he managed the property and that his wife was out buying a new lock and keys for all of the tenants. In the meantime, the front door was unlocked. PO Malone and § 87(2)(b) accused § 87(2)(b) of locking § 87(2)(b) out and § 87(2)(b) repeated that the door was not locked. PO Giglio told § 87(2)(b) that his wife would later be arrested. § 87(2)(b) and the officers went back outside. § 87(2)(b) proceeded to take the lock off of the front door so that there would be no more arguments and he believed the issue was over.

He walked back to his apartment door and PO Malone and § 87(2)(b) returned while PO Giglio stayed outside. PO Malone asked § 87(2)(b) for identification and told him to go inside and get it. § 87(2)(b) turned around and PO Malone stepped in front of him and held the door open with his foot. As § 87(2)(b) entered his apartment, out of habit he gently swung his left arm to close the door behind him, but he did not make physical contact with PO Malone. § 87(2)(b) heard PO Malone say that he was under arrest and felt a thump against the back of his head. PO Malone held § 87(2)(b) by the back collar of his shirt

and used his foot to push the lower half of § 87(2)(b)'s body forward causing him to fall head first into a set of French doors leading into his daughters' room. Simultaneously, § 87(2)(b) and § 87(2)(b) opened the bedroom door and § 87(2)(b) bear hugged both of them, causing them all to fall to the floor. § 87(2)(b) immediately stood back up, but § 87(2)(b) stayed on top of him. § 87(2)(b) and § 87(2)(b) faced each other, pinned between the radiator and the bed, with the right side of their bodies toward the ground.

PO Malone stood above § 87(2)(b) and § 87(2)(b) and discharged his pepper spray at them while saying, "Get your fucking hands out!" § 87(2)(b) shouted that he could not move his right arm and used his left to hold § 87(2)(b) so that her back shielded them both from the pepper spray. PO Malone kicked and punched § 87(2)(b) in the head and upper chest approximately thirty times. § 87(2)(b) denied kicking or punching back. § 87(2)(b) let go of § 87(2)(b) and she ran off. After approximately five to ten minutes, an officer who § 87(2)(b) could not described and who was identified via investigation as PO Erick Erdaide, ordered § 87(2)(b) to put his hands behind his back. He replied that he could not move his arm. PO Erdaide twisted § 87(2)(b)'s left hand and stated, "I will break your mother fucking hand. You think you're strong?" then kicked § 87(2)(b) in the left temple. § 87(2)(b) lost consciousness until he woke to two officers carrying him to a police car.

At the precinct stationhouse, § 87(2)(b) saw that § 87(2)(b) and § 87(2)(b) were also arrested while his § 87(2)(b) son was left at home alone. This and their false imprisonment angered § 87(2)(b). PO Malone accused § 87(2)(b) of grabbing his groin, which he denied. While in his cell, § 87(2)(b) asked PO Giglio for medical attention for his eyes and head and chest pain. She ignored him and walked away. § 87(2)(b) shortly thereafter asked a second officer, who he described as a 40 to 45 year old man with an olive skin tone and a medium build standing 5'6" to 5'11" tall. This officer told § 87(2)(b) that he had to go to Brooklyn Central Booking (BCB) and they would help him. § 87(2)(b) was brought to BCB at 10 or 11 p.m. where he asked for a third time for medical attention. They sent him back to the stationhouse and an ambulance arrived at approximately 3 a.m. He was brought to § 87(2)(b) and treated for § 87(2)(b).

§ 87(2)(g)

Victim: § 87(2)(b)

- § 87(2)(b) a black man with black hair and brown eyes, § 87(2)(b). He was § 87(2)(b) at the time of the incident. § 87(2)(b).

Arrest Photo (encl. C23)

§ 87(2)(b)'s arrest photo did not reveal any apparent injuries.

CCRB Statement (encl. C21-C22)

§ 87(2)(b) was interviewed at the CCRB on March 27, 2013. § 87(2)(g).

§ 87(2)(b) heard a noise, exited his bedroom, and saw PO Malone punching his father as

he lay on the floor in the doorway of his sisters' room. PO Malone beat § 87(2)(b) for approximately five minutes while § 87(2)(b) and § 87(2)(b) shouted at him to stop. No one tried to physically intervene. § 87(2)(b) ran into the hallway to shut the building's main door, but a group of fifteen uniformed officers rushed in and § 87(2)(b) followed them into his apartment. PO Erdaide stomped on § 87(2)(b)'s chest while PO Giglio chased § 87(2)(b) to the second floor. § 87(2)(b) and § 87(2)(b) followed behind. § 87(2)(b) did not hear any threats or curse words. At the landing to the second floor, § 87(2)(b) saw a few cops on top of § 87(2)(b) but he was unsure what they were doing. An unknown tenant, who has since moved, witnessed this.

PO Erdaide shouted at § 87(2)(b) § 87(2)(b) to, "Get the fuck downstairs" then chased him to the first floor where he saw two officers escorting § 87(2)(b) outside by his arms. PO Erdaide continued to curse at § 87(2)(b) but he could not recall the exact words used. Feeling provoked, § 87(2)(b) attempted to enter his apartment to distance himself, but PO Erdaide put him in a chokehold by wrapping one arm around his neck and holding that arm with his other arm. § 87(2)(b) neck slipped between PO Erdaide's forearm and his elbow, "kind of" hindering his ability to breathe. PO Erdaide pulled § 87(2)(b) to the ground and five to seven officers jumped on top of him and swung at him. He was punched once in the eye, causing him to see a white light, and kicked twice in the ribs by unidentified officers. He did not resist or fight back. After three to five minutes, § 87(2)(b) § 87(2)(b) was handcuffed, lifted off the ground, and escorted to a marked police car. At the stationhouse, he saw that § 87(2)(b) § 87(2)(b)'s eye was injured and closed. § 87(2)(b) received a bump to his head, but he never sought medical attention.

Victim: § 87(2)(b)

- § 87(2)(b) *a black woman with brown hair and brown eyes,* § 87(2)(b) § 87(2)(b) S. § 87(2)(b)

CCRB Statement (encl. C29-C30)

§ 87(2)(b) was interviewed at the CCRB on March 27, 2013. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were in their bedroom when they heard a rumble outside their door. Seconds later, the door opened and PO Malone pushed § 87(2)(b) by his shirt collar so that he landed pinned between the radiator and the bed. PO Giglio stood behind PO Malone, but she did not do anything. PO Malone punched § 87(2)(b) around his body multiple times. § 87(2)(b) and § 87(2)(b) jumped on top of § 87(2)(b) and PO Malone stopped punching him. Both PO Malone and PO Giglio ordered both girls to get off. § 87(2)(b) stood up, but § 87(2)(b) remained clung to her dad. PO Malone discharged his pepper spray in § 87(2)(b)'s face. § 87(2)(b) was not struck with the spray as her back was turned toward PO Malone. § 87(2)(b) pulled § 87(2)(b) off of § 87(2)(b) and PO Malone punched him for an additional four minutes. § 87(2)(b) did not hear PO Malone use profanities.

§ 87(2)(b) ran to the second floor to confront the tenant she believed called the police. PO Giglio and § 87(2)(b) followed her. As they ran, PO Giglio tripped over a two foot wrench on the ground. On the second floor, an unidentified tenant exited her apartment and consoled § 87(2)(b) as she cried and begged PO Giglio not to arrest § 87(2)(b) One or

two minutes later, approximately five officers ran up the stairs and PO Giglio grabbed § 87(2)(b) pushed her to the floor and told her that she was under arrest. § 87(2)(b) glasses fell off and she asked PO3, a black man of an unknown height and weight, who was kneeling at her side to grab them. He responded, “We don’t give a fuck about your glasses.” § 87(2)(b) laid on the ground for approximately five minutes as PO Giglio accused her of hitting her with the wrench, which § 87(2)(b) denied. She also heard officers yelling at § 87(2)(b) “get the fuck out of the way.”

§ 87(2)(b) became increasingly upset and told the officers they were going to have to drag her outside because she did not do anything wrong. She was then lifted to a standing position and “half dragged” down the stairs. As they descended the stairs, an officer identified via investigation as Sgt. Darryl Smallwood, tripped and became upset. Sgt. Smallwood threw § 87(2)(b) down the remainder of the stairs and she landed on top of § 87(2)(b) who was being kicked in the back by a group of officers. Officers pulled § 87(2)(b) off of § 87(2)(b) and dragged her outside through the snow. § 87(2)(b) requested slippers and PO3 said, “I don’t give a fuck about your feet.” PO Giglio transported § 87(2)(b) to the 83rd Precinct. She did not receive any injuries and did not request or receive medical attention.

Witness: § 87(2)(b)

- § 87(2)(b) a black woman with brown hair and brown eyes, § 87(2)(b)

CCRB Statement (encl. C37-C39)

§ 87(2)(b) was interviewed at the CCRB on March 27, 2013. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) pushed their way in-between PO Malone and § 87(2)(b) but § 87(2)(b) got off when both officers said she could be arrested. PO Malone pepper sprayed § 87(2)(b) § 87(2)(b) stated that she “knew her sister” and did not want § 87(2)(b) to physically react toward PO Giglio, so § 87(2)(b) moved her aside. § 87(2)(b) heard PO Malone say, “fuck,” but she could not recall the context.

§ 87(2)(b) followed § 87(2)(b) to the second floor where PO Giglio told § 87(2)(b) that she was under arrest for failing to obey orders. § 87(2)(b) was suddenly on the ground, but § 87(2)(b) did not see how. As they descended the stairs, an unidentified white male officer bumped into § 87(2)(b) then told another unidentified 23 to 24 year old black officer with a small build, to arrest § 87(2)(b) for abusing an officer. That officer slammed § 87(2)(b) against the wall, forced her hands behind her back, and handcuffed her. On the first floor, § 87(2)(b) saw about six officers who were not doing anything to § 87(2)(b) as he laid curled on the floor. § 87(2)(b) heard unidentified officers say, “fuck” throughout the interaction. At the precinct stationhouse § 87(2)(b) heard § 87(2)(b) call for officers’ attention, but they ignored him.

Witness: § 87(2)(b)

- § 87(2)(b) s pedigree information is unknown.

Phone Statement (encl. C46)

§ 87(2)(b) contacted the CCRB on April 11, 2013 and provided a brief statement.

§ 87(2)(b) confirmed that she called 911 because § 87(2)(b) refused to give her a key. § 87(2)(b) was defensive and argued that he was not responsible. PO Malone asked for identification and § 87(2)(b) retreated into his apartment. § 87(2)(b) brought her daughter outside because she felt an increased tension in § 87(2)(b). She heard scuffling, but did not witness any physical interaction. Thirty minutes later, § 87(2)(b) was escorted outside. He appeared to have blood on his head, but his adult children appeared uninjured.

NYPD Statements:

Subject Officer: PO STEVEN MALONE

- *PO Malone, a white man with brown hair and blue eyes, § 87(2)(b). He was § 87(2)(b) old at the time of the incident.*
- *PO Malone worked from 7:05 a.m. to 3:40 p.m. and was assigned to patrol sector A with PO Jeanette Giglio. He was dressed in uniform and assigned to marked motor vehicle #4574.*

Memo Book (encl. D34-D36)

1:03 p.m., other crime in progress at § 87(2)(b) 1:13 p.m., non-crime corrected and non-crime referred by another agency DOT on § 87(2)(b) 1:31 p.m., PO Giglio has four under re: § 87(2)(b) Sgt. Smallwood on scene. 1:35 p.m., Transporting 1 F to SH in regards. 1:45 p.m., out of service at SH F out auto. 2:40 p.m., request EMS to SH re: pain and abrasions to self. 3 p.m., RMA ACR #§ 87(2)(b)

CCRB Statement (encl. D39-D41)

PO Malone was interviewed at the CCRB on August 14, 2013.

On February 9, 2013, at approximately 1:30 p.m., PO Malone and PO Giglio responded to a call of a landlord/tenant dispute at § 87(2)(b) in Brooklyn. When they arrived they spoke with § 87(2)(b) who confirmed that she did not have a key to one of the building's doors. The officers entered the apartment building, but PO Malone could not recall if they had any issues getting through the doors. They knocked on the § 87(2)(b)'s apartment door several times before it was answered by § 87(2)(b). He was verbally combative, raising his voice, and arguing that he was not the landlord. § 87(2)(b) stated his wife was the owner of the building and PO Malone informed him that she would be arrested at a later time for unlawful eviction.

PO Malone, PO Giglio and § 87(2)(b) went outside to file a complaint report. PO Malone believed that § 87(2)(b) produced paperwork, but he could not confirm this. She stated that § 87(2)(b) was the individual who she signed the rental agreement with and who she provided rent to. The officers returned inside to arrest § 87(2)(b) for unlawful eviction, however, he was already removing the lock. PO Malone and PO Giglio decided to summons him instead and PO Malone asked for § 87(2)(b)'s identification. § 87(2)(b) walked towards his apartment and PO Malone told him to keep the door open as he feared that § 87(2)(b) would not come back out. § 87(2)(b) opened the door and PO Malone used his hand and his foot to prop it open. § 87(2)(b) then pushed PO Malone and tried to slam the door on him. PO Malone grabbed towards § 87(2)(b)'s arms, as he was now going to arrest him, and § 87(2)(b) grabbed at PO Malone's testicles.

§ 87(2)(b) stepped backwards into his apartment and stumbled into a door directly adjacent to the entrance. § 87(2)(b) grabbed a female, identified via investigation as § 87(2)(b) and fell to the ground with her landing on top of him. They faced upwards and § 87(2)(b) had his arms hooked under § 87(2)(b) like a “human shield.” PO Malone shouted at § 87(2)(b) to let go of § 87(2)(b). Simultaneously, PO Malone removed his pepper spray from his holster, hoping that § 87(2)(b) would let go of § 87(2)(b) but not intending to use it because of the confined space. PO Malone told § 87(2)(b) that he would pepper spray him if he had to, again hoping that he would surrender.

PO Malone could not recall how, but § 87(2)(b) was released and ran from the room. PO Malone put his pepper spray away and tussled with § 87(2)(b) to get his arms. PO Giglio was unable to help as she was standing in the doorway, giving verbal orders and blocking other family members from intervening. § 87(2)(b) held one hand by his chest and the other up in the air. PO Malone grabbed one hand, but was unable to get it behind § 87(2)(b)'s back or get the other hand. PO Malone described § 87(2)(b) as “not a big man, but a strong man.” PO Malone tried unsuccessfully for a total of two to three minutes to pull at § 87(2)(b)'s arms.

After several verbal orders to comply, § 87(2)(b) grabbed at PO Malone's testicles a second time and PO Malone punched him with a closed fist two to three times around his head. § 87(2)(b) still did not cooperate and PO Malone removed his pepper spray again and discharged it twice directly at § 87(2)(b). It had a momentary effect, but after a few moments § 87(2)(b) still did not provide his arms. PO Malone did not kick § 87(2)(b) and could not recall saying, “Give me your fucking hands” or using curse words.

PO Erdaide arrived and the strength of having two officers was enough to grab § 87(2)(b)'s arms and handcuff him. PO Malone could not recall if PO Erdaide said, “I will break your motherfucking hands.” PO Erdaide and PO Malone escorted § 87(2)(b) to a police vehicle and PO Malone remained outside to compose himself. He heard commotion and returned inside, but the family members were all already handcuffed and being escorted out. PO Malone never saw § 87(2)(b) § 87(2)(b) be placed in a chokehold and could not recall seeing any force used against him. PO Malone and PO Giglio transported one of the females to the stationhouse, where PO Malone did not have any further interaction with any members of the § 87(2)(b) family. PO Malone called for an ambulance for himself since he had scrapes, bleeding, and pain to his arms.

Subject Officer: PO JEANETTE GIGLIO

- *PO Giglio, a white woman with brown hair and blue eyes, § 87(2)(b). She was § 87(2)(b) old at the time of the incident.*
- *PO Giglio worked from 7:05 a.m. to 3:40 p.m. and was assigned to patrol sectors A and B with PO Stephen Malone. She was dressed in uniform and assigned to marked vehicle #4574.*

Memo Book (encl. D1-D3)

1:03 p.m., § 87(2)(b) other crime in progress. 1:13 p.m., non-crime corrected, non-crime referred by another agency. DOT notified. 1:31 p.m., four under from § 87(2)(b) § 87(2)(b). 1:45 p.m., arrived at the stationhouse. 3:15 p.m., § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b). 6:30 p.m., spoke to ADA. 9:30 p.m., received fax.

Arrest Reports (encl. D6-D17)

§ 87(2)(a) 160.50

CCRB Statement (encl. D19-D21)

PO Giglio was interviewed at the CCRB on July 1, 2013. § 87(2)(g)

PO Giglio concurred that after § 87(2)(b) provided documentation, § 87(2)(b) was ordered to keep his door open while he retrieved his identification. He slammed the door into PO Malone who put his hand up to block the door from being struck. § 87(2)(b) grabbed at PO Malone's genitals and PO Malone reached at § 87(2)(b)'s arms as § 87(2)(b) stumbled backwards into his daughter's room. PO Giglio used her radio to call for assistance, which went both to the 81st and 83rd Precincts.

PO Giglio tried to assist PO Malone by grabbing at § 87(2)(b)'s hands, but § 87(2)(b) and § 87(2)(b) grabbed at PO Giglio and screamed at the officers to get off their father. PO Giglio and PO Malone verbally ordered § 87(2)(b) to stop resisting and to release his hands, but he stiffened up, refused to give his arms, and kicked at PO Malone. § 87(2)(b) and § 87(2)(b) grabbed at PO Giglio and someone struck her in the middle of her back with an object. When she turned around, she saw that it was § 87(2)(b) who dropped an approximately one-foot-long wrench and ran to the second floor. PO Malone successfully handcuffed one of § 87(2)(b)'s arms and § 87(2)(b) used the cuffed hand to swing at PO Malone. PO Giglio struggled to help PO Malone because § 87(2)(b) and § 87(2)(b) § 87(2)(b) pulled her back. PO Malone did not punch or kick § 87(2)(b)

PO Malone discharged his pepper spray at § 87(2)(b). PO Giglio and PO Malone inhaled the spray and began to cough. § 87(2)(b) did not seem effected as he continued to fight PO Malone. Back up arrived approximately five minutes after the call for assistance was made and PO Erdaide assisted in handcuffing § 87(2)(b) by grabbing his arms. No additional force was used. PO Giglio did not hear an officer use discourteous language or make threats. PO Giglio informed Sgt. Smallwood that the other family members were under arrest then she, Sgt. Smallwood, PO Nikia Diggs and other unidentified officers followed.

§ 87(2)(b) was alone on the landing to the second level. PO Giglio and other officers attempted to handcuff her, but she threw herself to the ground, flailed her arms, and screamed at them. She tried to stay crouched on the ground, but PO Giglio and another officer lifted her up and handcuffed her without using any other force. No officers used profanities towards § 87(2)(b). § 87(2)(b) refused to walk down the stairs and PO Giglio and Sgt. Smallwood hooked their arms under her, picked her up and carried her down. § 87(2)(b) was never pushed down the stairs, however, Sgt. Smallwood tumbled down the last few steps.

While handcuffed, § 87(2)(b) tried to run back into the apartment, but was stopped by officers. § 87(2)(b) was not taken to the ground, put in a chokehold, kicked, or punched. PO Giglio and PO Malone transported § 87(2)(b) and § 87(2)(b) to the precinct stationhouse. § 87(2)(b) never requested any medical attention and she was unsure why he later went to the hospital. EMS evaluated PO Giglio's back after being struck with the wrench.

Subject Officer: PO ERICK ERDAIDE

- PO Erdaide, a Hispanic man with black hair and hazel eyes, § 87(2)(b). He was § 87(2)(b) old at the time of the incident.
- PO Erdaide worked from 7:05 a.m. to 3:40 p.m. and as assigned to patrol sectors C and D with PO Vincent Campo. He was dressed in uniform and assigned to motor vehicle #3307.

Memo Book (encl. D42-D45)

1:25 p.m., call for assistance at § 87(2)(b) for Adam. 1:38 p.m., transporting one back for Adam.

CCRB Statement (encl. D48-D49)

PO Erdaide was interviewed at the CCRB on September 13, 2013. § 87(2)(g)

As soon as PO Erdaide entered the location he saw PO Giglio and PO Malone struggling on the ground with § 87(2)(b) who was trying to stand up, elbowing and kicking at the officers. PO Erdaide crouched down to assist the officers by grabbing at § 87(2)(b)'s left arm while PO Malone grabbed at the right arm. They both gave § 87(2)(b) verbal commands to cooperate. Other family members were close by and shouting, but they did not physically intervene. PO Erdaide did not say, "I will break your motherfucking hand" and did not hear PO Malone use any profanities. § 87(2)(b) was successfully handcuffed after two to three minutes of grabbing at his hands. He was never punched or kicked.

As PO Erdaide exited the apartment to assist with arresting the other family members, § 87(2)(b) slammed the door on PO Erdaide while shouting, "Get the fuck out of my apartment." PO Erdaide did not pursue him since the door had shut and there was commotion upstairs. PO Erdaide stood behind several officers on the stairwell, but noticed that the situation upstairs appeared under control. He did not hear any officers use discourteous language. As he turned around to go back downstairs, he noticed that § 87(2)(b) was behind him shouting profanities at the officers for arresting his sisters. After § 87(2)(b) made eye contact with PO Erdaide he turned around and headed back towards his apartment. PO Erdaide grabbed him from behind, but § 87(2)(b) grabbed on to each side of the door frame to try and pull himself back into the apartment. PO Erdaide put his weight into pulling § 87(2)(b) backwards and PO Erdaide fell on his buttocks with § 87(2)(b) landing beside him.

Other officers came to PO Erdaide's assistance and gave § 87(2)(b) verbal commands to give up his hands. The officers grabbed at his hands, but § 87(2)(b) pulled them back towards him. No further force was used. § 87(2)(b) was never placed in a chokehold and never appeared to struggle for air as he was cursing throughout the struggle. He was handcuffed after approximately one minute then picked up and escorted outside. § 87(2)(b) did not appear or complain of being injured. PO Erdaide transported an unknown individual to the precinct stationhouse then returned to patrol. He did not interact with the family members while at the stationhouse and did not hear an officer refuse to provide medical attention.

Subject Officer: SGT. DARRYL SMALLWOOD

- *Sgt. Smallwood, a black man with black hair and brown eyes, § 87(2)(b) old at the time of the incident.*
- *Sgt. Smallwood worked from 6:50 a.m. to 3:47 p.m. and was assigned to patrol supervisor with PO Nikia Diggs. He was dressed in uniform and assigned to marked vehicle #3466.*

Memo Book (encl. D22-D24)

Sgt. Smallwood did not prepare a memo book entry in regards to this incident.

CCRB Statement (encl. D27-D28)

Sgt. Smallwood was interviewed at the CCRB on July 24, 2013 § 87(2)(g).

By the time Sgt. Smallwood and his operator, PO Diggs, arrived numerous officers had already responded. Sgt. Smallwood went to the landing to the second floor and officers were struggling with § 87(2)(b) who was flailing her arms and refusing to be handcuffed. Officers told her to stop resisting, but Sgt. Smallwood could not recall if he said anything or used any profanities. He could not recall hearing any officer speak discourteously. Sgt. Smallwood tried to grab at § 87(2)(b)'s hands to cuff them, but she flailed striking Sgt. Smallwood and knocking him down the flight of stairs. Sgt. Smallwood did not see any use of force against § 87(2)(b). Sgt. Smallwood could not recall if he transported anyone to the precinct stationhouse.

Witness Officer: PO NIKIA DIGGS

- *PO Diggs, a black woman with black hair and brown eyes, § 87(2)(b) old at the time of the incident.*
- *PO Diggs worked from 7:05 a.m. to 3:40 p.m. and was assigned to sergeant's operator with Sgt. Darryl Smallwood. She was dressed in uniform and assigned to marked vehicle #3466.*

Memo Book (encl. D29-D30)

PO Diggs did not record a time for the incident, but noted between 10:30 a.m. and 2:50 p.m.: call for assistance post at § 87(2)(b) and § 87(2)(b).

CCRB Statement (encl. D32-D33)

PO Diggs was interviewed at the CCRB on July 24, 2013 § 87(2)(g).

PO Diggs responded to a commotion on the second floor where she encountered other officers who she did not recognize and believed were from a different command. § 87(2)(b) flailed her arms and § 87(2)(b) interfered by standing in between the officers. Both sisters were verbally ordered multiple times to put their hands behind their back. One sister did not comply and the other did. PO Diggs did not use or hear any profanities. As multiple officers escorted the sisters downstairs, Sgt. Smallwood and one sister tripped and stumbled down the stairs. PO Diggs did not see officers punch, kick, or place anyone in a chokehold. PO Diggs could not recall transporting anyone to the precinct stationhouse.

Witness Officer: SGT. GERARD NICHOLSON

- *Sgt. Nicholson, a white man with brown hair and blue eyes, § 87(2)(b)*

- § 87(2)(b) He was § 87(2)(b) old at the time of the incident.
- Sgt. Nicholson worked from 6:55 a.m. to 3:52 p.m. and was assigned to desk sergeant. He was dressed in uniform.

Memo Book (encl. D50-D51)

6:55 a.m., PFD, desk.

CCRB Statement (encl. D54-D55)

Sgt. Nicholson was interviewed at the CCRB on October 10, 2013. § 87(2)(g)

Sgt. Nicholson did not have an independent recollection of an interaction with § 87(2)(b) or any of his family members. He was shown their photos and command log entries, however, they did not jog his memory. Sgt. Nicholson could not recall any of the family members needing or requesting medical attention nor whether PO Giglio informed him that medical attention had been requested. Sgt. Nicholson specified that he was required to get medical attention for anyone who requested or appeared to need it, but that any other supervisor could approve medical attention as well.

Medical Records

§ 87(2)(b) (encl. Privileged Documents)

§ 87(2)(a) PHL § 18(6)

NYPD Documents

Command Log (encl. F4-F5)

The command log entries for § 87(2)(b) and § 87(2)(b) all noted that their physical and mental conditions were apparently normal. The status of § 87(2)(b) physical and mental condition was illegible. It noted that he was taken to Brooklyn Central Booking at 8:40 p.m. on February 9, 2013. He was then brought back to the stationhouse at 3 a.m. on February 10, 2013 and brought to § 87(2)(b) at § 87(2)(b)

Medical Treatment of Prisoner Report (MTPR) (encl. F3)

The MTPR notes that § 87(2)(b) was having chest and head pain.

Other Evidence

Video Footage (encl. G1)

§ 87(2)(b) provided a copy of his surveillance footage to his attorney, who in turn provided a copy to the CCRB on June 17, 2013. The footage covered the main hallway and the entrance. It did not cover the second floor, the stairwell, or the § 87(2)(b) apartment. At 14:25:16: Two officers escorted § 87(2)(b) who was walking without assistance, out of the building (encl. G6-G7).

Arrest for Incident and Disposition (encl. H1-H28)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings (encl. H29)

- The [§ 87(2)(b)] family has not filed a Notice of Claim with the City of New York as of July 19, 2013 with regard to the incident, two months after the filing deadline.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History (encl. B6-B9)

- This is the first CCRB complaint involving [§ 87(2)(b)] and [§ 87(2)(b)]
- [§ 87(2)(b)] has filed the following CCRB complaints:
 - [§ 87(2)(b)]

Subject Officers CCRB History (encl. B1-B5)

- PO Malone has been a member of the service for six years and there is one substantiated CCRB allegation against him and one citation for [§ 87(2)(b)]
 - In case 200903048 an entry and search allegation was substantiated and in August of 2010, the NYPD issued him instructions.
 - [§ 87(2)(g), § 87(4-b)]
- PO Erdaide has been a member of the service for four years and there are three substantiated CCRB allegations against him:
 - In case 201005897 stop, frisk, and search allegations were substantiated and in October of 2011, the NYPD issued him instructions.
- Sgt. Smallwood has been a member of the service for eight years and there are no substantiated CCRB allegations against him.
- PO Giglio has been a member of the service for three years and there are no substantiated CCRB allegations against her.

Conclusion

Allegations Not Pled

[§ 87(2)(g)]

As described by all parties, [§ 87(2)(b)] used [§ 87(2)(b)] as a shield from the pepper spray. [§ 87(2)(g)]

[§ 87(2)(b)] alleged that she heard officers yell at [§ 87(2)(b)] to “get the fuck out of the way.” [§ 87(2)(b)] denied this. [§ 87(2)(g)]

Identification of Subject Officers

§ 87(2)(g)

Sgt. Smallwood, PO Malone, PO Erdaide and PO Giglio acknowledged interacting with § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: Officers used physical force against § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation B – Force: PO Steven Malone used pepper spray against § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation C – Discourtesy: PO Steven Malone spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.

It is undisputed that physical force was used against § 87(2)(b) and § 87(2)(b) and that PO Malone discharged his pepper spray at § 87(2)(b) § 87(2)(b) denied intentionally slamming the door on PO Malone and alleged that he was pushed to the floor of daughters' bedroom. PO Malone allegedly punched and kicked him thirty times in the head and chest while shouting, "Get your fucking hands out." He acknowledged that he was given several orders to give up his hands, but stated he was unable to based on his physical position. § 87(2)(b) claimed that PO Erdaide kicked him in the left temple, causing him to lose consciousness until he awoke to being carried to a police car. § 87(2)(b) stated that PO Erdaide pulled him to the ground and five to seven officers jumped on and swung at him. § 87(2)(b) was allegedly punched once in the eye, causing him to see a flash of light, and kicked twice in the ribs. Both § 87(2)(b) and § 87(2)(b) denied resisting arrest, punching, or kicking at the officers.

PO Malone and PO Giglio concurred that § 87(2)(b) initiated the use of force by slamming a door on PO Malone and grabbing at his testicles. They both stated that § 87(2)(b) used § 87(2)(b) as a shield and held his arms away from PO Malone's attempts to handcuff him for several minutes. PO Malone acknowledged pepper spraying and punching § 87(2)(b) two to three times in the head after warnings that he would use the pepper spray had failed and § 87(2)(b) grabbed at PO Malone's testicles a second time. PO Malone could not recall using profanities. PO Erdaide acknowledged grabbing § 87(2)(b) s hands to handcuff him, but denied kicking him. He also stated that § 87(2)(b) had tried twice to retreat inside his apartment. PO Erdaide acknowledged pulling § 87(2)(b) to the hallway floor and subduing him with other officers, but denied that any officer kicked or punched him.

The video footage shows § 87(2)(b) exiting his apartment, handcuffed, and without any assistance. The arrest photos revealed that § 87(2)(b) did not have any apparent facial injuries and that § 87(2)(b) s eyes were squinted. No other injuries were apparent. § 87(2)(b) also received medical treatment and was diagnosed with head injury absent open wounds. § 87(2)(b) never requested or received medical treatment.

Only that amount of force necessary to overcome resistance will be used to effect an arrest.

Patrol Guide Procedure 203-11 (encl. A1-A2). Pepper spray may be used when an officer reasonably believes it is necessary to effect an arrest of a resisting suspect or for self-defense. Patrol Guide Procedure 212-95 (encl. A3-A6). When an officer uses profanity in trying to secure a civilian's cooperation or for other legitimate law enforcement ends, the profanity may not rise to the level of misconduct. Police Department v. Dukes, OATH Index Nos. 1137-39/00 9 (encl. A7-A15).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED] As such, it is recommended that **Allegations A, B, and C** be closed as **exonerated**.

Allegation D – Abuse of Authority: PO Erick Erdaide threatened § 87(2)(b) with the use of force at § 87(2)(b) in Brooklyn.

Allegation E – Discourtesy: PO Erick Erdaide spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation F – Force: PO Erick Erdaide used a chokehold against § 87(2)(b) at § 87(2)(b) in Brooklyn.

§ 87(2)(b) stated that PO Erdaide said, “I will break your motherfucking hand.” § 87(2)(b) alleged that PO Erdaide told him, “Get the fuck downstairs,” then wrapped his forearm around § 87(2)(b) neck and pulled him to the ground, hindering his ability to breathe. § 87(2)(g)

[REDACTED]. § 87(2)(b) and § 87(2)(b)

[REDACTED] did not see § 87(2)(b) until he was already down on the ground, being subdued by officers. None of the officers could recall using or hearing profanities or threats. PO Erdaide and other officers denied putting or witnessing § 87(2)(b) in a chokehold and stated that he never appeared to struggle for air as he cursed at the officers while they subdued him.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) As such, it is recommended that **Allegations D, E, and F** be closed as **unsubstantiated**.

Allegation G – Discourtesy: An officer spoke discourteously to § 87(2)(b) at § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that an officer told her that they did not “give a fuck” about her glasses or her feet. § 87(2)(b) described the officer who said this as a black man and was unable to provide further description. Pursuant to a call for assistance, several officers responded to the location and some were said by the officers to have been from a different command.

§ 87(2)(g) As such, it is recommended that **Allegation G** be closed as **officer unidentified**.

Allegation H – Force: Sgt. Darryl Smallwood used physical force against § 87(2)(b) at § 87(2)(b) in Brooklyn.

It is undisputed by both § 87(2)(b) and the officers that she was uncooperative when the officers tried to handcuff and escort her to the police car. However, § 87(2)(b) alleged that as the group descended the stairs Sgt. Smallwood tripped and became upset. He then allegedly threw § 87(2)(b) down the remainder of the stairs, causing her to land on top of § 87(2)(b). § 87(2)(b) stated that she did not receive any injuries and all other family members failed to acknowledge this allegation. Sgt. Smallwood stated that as he tried to grab at § 87(2)(b)'s arms to handcuff her, she flailed her arms, knocking him down the stairs. Both PO Giglio and PO Diggs acknowledged that Sgt. Smallwood tripped while escorting § 87(2)(b) causing them to stumble down the final steps.

§ 87(2)(g)

§ 87(2)(g) As such, it is recommended that **Allegation H** be closed as **unfounded**.

Allegation I – Abuse of Authority: PO Jeanette Giglio did not obtain medical treatment for § 87(2)(b) at the 83rd Precinct Stationhouse.

Allegation J – Abuse of Authority: An officer did not obtain medical treatment for § 87(2)(b) at the 83rd Precinct Stationhouse.

§ 87(2)(b) stated that while at the stationhouse, he asked PO Giglio for medical attention and she allegedly ignored him and walked away. Shortly thereafter, § 87(2)(b) alleged that he also requested it from a second officer, who he described as a 40 to 45 year old man with olive skin tone and a medium build, standing 5’6” to 5’11” tall. The officer allegedly told him to wait until he went to Brooklyn Central Booking. § 87(2)(b) was the only individual who acknowledged hearing an interaction between § 87(2)(b) and officers

while at the precinct stationhouse and she only heard him calling for the officers' attention.

PO Giglio denied that § 87(2)(b) ever requested medical attention. The desk sergeant at the time, Sgt. Nicholson, a white man with brown hair and blue eyes who stands 6'0" tall and weighs 200 pounds denied knowing of § 87(2)(b) or his family members. He was shown their photos and command log entries, however, it did not jog his memory.

§ 87(2)(g)

As such, it is recommended that **Allegation I** be closed as **unsubstantiated** and **Allegation J** be closed as **officer unidentified**.

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date